Grant Smith Ellis Court Log

United States v. Matthew Farwell

October 20, 2026

Reporting by Grant Smith Ellis (@GrantSmithEllis) · YouTube

About this report

This document reconstructs Grant Smith Ellis's contemporaneous courtroom reporting from his October 20, 2026 posts on X and is reproduced here in support of public access to the proceedings. Every reasonable effort is made to ensure accuracy and completeness; however, this document should be understood as neither an official court transcript nor a perfect reproduction of Grant's original reporting.

Pre-court note

5:43:07 AM ET
Good morning from a very chilly Boston.

I am awake and ready for today's testimony in the Sandra Birchmore and Matthew Farwell trial.

Will we hear from James Fitton, the Stoughton Police dispatcher who told Matthew Farwell about Julia Perlin's Jan 20, 2021 phone call?

Open original post on X

Pre-jury rulings and housekeeping

8:51:08 AM ET
Hello, this will be today's live thread for coverage of the Sandra Birchmore and Matthew Farwell trial.

I am seated, with my keyboard, and we are ready to begin.

Judge has reviewed new docket 364, as to one of the disputed exhibits, and something related to deputy chief Holmes which Judge has review.

Judge says she will take up where we left off yesterday so counsel has the benefit of her rulings to the extent they will come up today.

As to exhibits 639 and 640. There are the Dr. Leonard record and letter. Judge also read the redacted form, and the full document.

Judge says counsel can be seated.

Government objections were to relevance and hearsay. Judge considered those as such. The

discussion yesterday did not focus on relevance but Judge considered it. Judge went back to her ruling on docket 196. Judge says she recalls she agreed with the defense that the relevant period went further back than the government contended. Still, judge thinks the relevance of 639 and 640 is less the further we get away from the issues in this case, particually where Mr. leonard's last appointment was back in March of 2012 and to be quite honest judge has looked through it and believes it is not entirely clear tyhat he saw Ms. Birchmore on that day. It's obvious that this document is hearsay, says Judge. Judge considered the exceptions including 803 (3), it's not clear that it's present sense impression because they are not Sandra's statements. It is not 803 (4) because it's not for the purpose of Sandra's diagnosis as a opposed to a joint diagnosis, also it is not clear that it meets the standard under 803 (6) as a business record and also judge considered 807, the residual exception supported by sufficient guarantee of trustworthiness and it has to be more probative than any other evidence that could be offered. Lastly, even going beyond relevance, Judge has concerns given that Dr. Leonard cannot be called (he is dead) thus I am concerned that any probative value is outweighed by unfair prejudice. in regards to 639 and 640, that will be my ruling. Excluding the document itself."

DOJ wins. Sandra's records from Dr. Leonard kept out. Excellent.

Open original post on X

8:52:40 AM ET
"What about your experts, defense counsel, will they talk about Dr. Leonard's records?"

"We did give them to our expert to provide also, young honor, the government medical expert said that Sandra denied prior history of certain illnesses so we think the question to Dr. V would be appropriate, if I can use Dr. V to simply the record instead of her name, and while I understand your honor's ruling we want to proceed with questions to Dr. V about this."

Open original post on X

8:55:16 AM ET
"Counsel, on this point?"

"That presumed that counsel is going to be able to ask the question about, 'if Ms. Birchmore had BPD, would you have taken different steps,' but there is no evidence of BPD at any point in time."

"Your honor, that presumed a history of misdiagnosis. I am not asking Dr. V to assume Ms. Birchmore had BPD, just to ask if she did have that prior digansois and we think that is a fact any doctor would want to know."

"So, counsel, I am going to think a little more about this as we continue with the current witness. I understand the government's point given that, I don't know if opening this line of questioning where the only basis for it is a document that is not otherwise going to come in so let me think about it some more."

"Yes, your honor, may we mark our redacted exhibits part of the record for any subsequent appeal?

"Yes, I assume that is the case with any documents proposed but not admitted."

Open original post on X

8:58:20 AM ET
"Counsel, as to exhibit 739 or y-13, this was the section 12 document, and I considered the government's hearsay, 801 and 403 objections. I agree that it is hearsay. I considered the exceptions. I think Ms. Stevens may have mentions business records but I thought 8703 (8) (a) (2), the public records exception, is more on point here. I wanted to consider it further given the nature of this case and the nature of the document. Counsel, I also looked at applicable caselaw, US vs Lang, 1st circuit, 2012, where they affirmed the admission of an immigration form even though it was completed by LEO, I think the same applies here, this was not a document generated in a criminal case, it was actually as to a matter for lack of better term a well being matter, and here it is being offered for the defense, I know the government was suggesting a lack of trustworthiness, which is a provision in the rule for me to consider, I don't think there is a lack of trustworthiness and I don't think it rises to 403. It goes to weight for the jury to consider and frankly, and I think they already heard evidence on this point. I will allow admission of 739."

Open original post on X

9:00:27 AM ET
"Will any of the updated disputed exhibit list be reached today?"

"No, not today."

"Anything else this morning?"

"The issue about Holmes?"

"I looked at the 2022 memos and the responses."

"Your honor, we found it, it was our mistake, they served it on us." - Defense

"Your honr, on i-14, the DOJ said the had no problem if they wanted to bring in attendance records, I have one from 6th grade if that's okay?"

"Any objection to that?"

"I'm objecting from the 6th grade on relevance."

"I'm assuming it's on a theory as to what if anything had an effect on her attendance record?"

"Yes, your honor and the government talkied only of 10 and 11th grade, and this is from 4 years earlier."

"Okay, I'll consider this."

Open original post on X

9:00:57 AM ET
"Your honor, can we talk about the parameters for the affair partners at 4PM today?

"Yes, but we have a court ceremony at 4pom so we need to end early today."

Open original post on X

9:05:18 AM ET
"Your honor we don't want to share our exhibits with the DOJ, we only want to provide it to your honor in advance of cross, but only via a secure link with the court."

"Ms. Cook, you can go get the jurors. We'll line them up. Counsel, I hear your point but that's somewhat out of compliance with the advance notice required under the local rules and my prior orders."

"Your honor, giving the DOJ the exhibits tied to the witness we want to use them with, gives the DOJ an unfair advantage."

"Your honor, its the government's view that the affirmative introduction of evidence is different that impeachment. Given that some of the defense exhibits have been proffered in the wrong form, it's difficult to ascertain what they are. As to any impeachment exhibits, no objection, but any previewing even to this point of other defense exhibits has been minimally helpful."

"Counsel, Ms. Stevens' comment is noted for the record but I think it is somewhat inconsistent with the court's prior orders and counsel just for the record, as I don't need to tell counsel, there are 100';s of exhibits some of which raise multiple levels of hearsay and I think it's appropriate for the court to be able to consider them ahead of time not just for jury management but for the purposes of understanding the arguments not in the heat of passion in the moment but so that I can continue to give your objections the full consider I have."

Open original post on X

9:05:37 AM ET
"All rise!"

Jurors entering.

Open original post on X

Special Agent Heidi Kelsch — Continued Examination

9:06:07 AM ET
"Good morning jurors, thank you again for your promptness, we'll get started right away. I remind you [turning to the witness], you are under oath. Ms. Daley, go ahead."

Open original post on X

9:07:52 AM ET
"You testified on Direct that Ms. Birchmore did some internet searches in the weeks before her passing?"

"Yes, Ma'am."

"Can we pull up 238...exhibit 238. It has already been published. Do you recognize this exhibit?"

"Yes."

"Just to be clear, the cover sheet for this magnet forensic examination report is just a cover sheet that is generated when you pull data from a device, yes?"

"It was created by our digital forensic examiner, so I'm not familiar with when the cover sheets were attached."

"Does it have all of Sandra's web searches?"

"No."

Open original post on X

9:08:40 AM ET
"Do we see searches for ultra sound, at 1:49pm, and ultra sound at 1:49pm, as searches that you talked about on direct?"

"Yes."

"And other searches, like bleeding during pregnancy at six weeks?"

"Yes."

"Baby shower venues?"

"Yes."

"Cramping at 9 weeks?

"Yes."

Open original post on X

9:09:43 AM ET
"Do you recognize this exhibit?"

"This looks like a list of internet searches for a variety of databases, I can't tell from this which device it came from."

"Can we make this a little bigger?"

"These are Sandra Birchmore's searches for Jan 17th, some of her searches, the day prior to the date in the report we just looked it?"

"It could be, but ti looks like a lot of them are duplicative."

Open original post on X

9:10:38 AM ET
"Can we just go to page 5, the 5th page of this exhibit, and starting at page 21, this is where Jan 18th starts, yes?"

"Yes."

"So, um, at 3:34AM she is googling why do girls spot during pregnancy..."

"Objection, not in evidence."

"Sustained."

"I'm sorry your honor."

Open original post on X

9:11:29 AM ET
"This internet search for Jan 18th, can you go to page 45 as marked on the document...is this the 18th going into the 19th?"

"Yes."

Note; Farwell is sitting with his hand over his mouth and communicating with Kim Stevens as this cross happens.

Open original post on X

9:13:48 AM ET
"Your honor, move to admit exhibit?"

"Objection!" - DOJ

"Which pages specifically do you object to, counsel?"

"Page 19, bottom right corner."

"Your honor, we're not seeking to admit that page."

"Okay, this can be published."

Open original post on X

9:14:22 AM ET
"Understanding that there are some duplicates, Sandra Googles 'do girls spot during pregnancy' at 3:34 and 3:35?"

"Yes, but some of them are duplicates so it could be just one search."

Open original post on X

9:15:10 AM ET
"Duplicates stored in different databases?"

"Yes."

"She googles at 3:45 how much bleeding is normal in early pregnancy?"

"At 3:45? Yes."

"Then bleeding during pregnancy at 6 weeks?"

"Yes."

Open original post on X

9:15:47 AM ET
"Then multiple searches for six weeks pregnant or six weeks ultra sound..."

"I wouldn't know if those were multiple searches."

"Okay, so two searches, one for six weeks pregnant and one for six weeks ultra sound?"

"Yes."

Open original post on X

9:16:33 AM ET
"At 4:01, miscarriage at six weeks, ultrasound?"

"Yes."

"Then ultra sound pictures at 3:59, I'm sorry the one at 3:59 was first, ultrasound, then miscarriage at 4:01?"

"Yes."

"And these times are AM?"

"Yes."

Open original post on X

9:16:59 AM ET
"Then at 4:02am, early miscarriage and 12 week lighted over miscarriage, then miscarriage six weeks ultrasound?"

"Yes."

Open original post on X

9:17:23 AM ET
"Next page. It continues, 4:03 miscarriage six weeks ultra sound, this could be a duplicate right?"

"Yes."

Open original post on X

9:17:54 AM ET
"At 4:03am, spotting during pregnancy?"

"Yes."

"4;06, can you spot from holding your pee?"

"Yes."

"4:41am, spotting during pregnancy?"

"Yes."

Open original post on X

9:18:50 AM ET
"Then the baby yolk sack search at 9:36am?"

"Yes."

"Dr. Sooch, does that name ring a bell as referenced in the medical records?"

"Yes."

"Then another search, when does the placenta form, at 9:41?"

"Yes."

Open original post on X

9:19:29 AM ET
"Then Creative World?"

"Yes, Sandra applied to work at a day care center."

"Okay, next page; ultrasound at five weeks, another search?"

"Yes."

"Okay, next page."

This is a strange cross.

Open original post on X

9:20:11 AM ET
"Ultra sound at five weeks, then creative world again, yes?"

"Yes."

"Okay, at 8:22pm, she starts googling baby shower locations in Plymouth?"

"Yes."

"Then Plymouth Restaurants?"

"Yes."

Open original post on X

9:20:30 AM ET
"Then Hingham Baby shower places?"

"Yes."

"Then when does the placenta form?"

"Yes."

Open original post on X

9:21:08 AM ET
"Now country club searches?"

"Yes."

"Outdoor venues near me?"

"Yes."

"Lakeview pavilion?"

"Yes."

"Restaurants by Plymouth rock?"

"Yes."

Open original post on X

9:22:20 AM ET
"Are there many searches related to baby showers and venues for those baby showers?"

"Yes."

"Skip ahead. We can skip ahead. Skip ahead. Okay."

"Now she searches the Simmons calendar at 9:52pm?"

"I think it is 9:59PM."

"I'm sorry, yes, 9:59PM."

"This is four days Sandra was rejected from the Simmons Nursing program?"

"She got accepted to Simmons, the general education program, but rejected from the nursing program."

Open original post on X

9:23:04 AM ET
Wow, Sandra Birchmore was admitted to Simmons College, via the general education program, just a few weeks before she died.

Farwell's defense tried to make it seem like Sandra was denied from the nursing school at Simmons, and from the school itself, but the latter was not true.

Open original post on X

9:23:40 AM ET
"Were there more searches than what is shown in these records?"

"Yes, there were years of searches. This is just a few days."

"Okay."

"Now let's look at Jan 19, 2021."

Open original post on X

9:25:06 AM ET
"So, on Jan 19th, we can go back..."long pause...papers shuffle...someone whispers...now the lawyer says "do you recognize those searches from Jan 19th?"

"Yes."

"Your honor I move to admit Jan 19th?"

"Page numbers please?"

"That is starting on marked page 52."

"No objection."

"They may be admitted and published."

Open original post on X

9:25:44 AM ET
"Back to Jan 19th now, we are back to searches for six weeks pregnant bleeding bright red, and do people who are pregnant bleed, and also early pregnanancy scan?"

"Yes."

Open original post on X

9:27:24 AM ET
"Now a planned parenthood search?"

"Yes."

"Does planned parenthood do ultrasounds?"

"Yes."

"Then heartbeat on baby can still miscarry?"

"Yes."

"Then, if you have a heartbeat on baby can you still miscarry?"

"Yes."

"Then searches for Plymouth Rock?"

"At least one I don't know if there were multiple."

"Well we see it once at the top, and once at the bottom, so those would be separate searches correct?"

"Yes."

"Then at six and a half weeks baby heartbeat?"

"Yes."

Open original post on X

9:28:10 AM ET
"So we're seeing searches back and forth between possible miscarriage and then baby shower venue?"

"Yes, I think she was bleeding that day or the day prior."

"Okay, now to Feb 1st, 2021, the last one."

"Can I just look at this counsel...okay, it may be admitted and published."

Open original post on X

9:28:57 AM ET
"On Feb 1, 2021, she starts Googling cramping at 9 weeks and we see that search duplicated?"

"Yes."

"Next page, Googling nine weeks pregnant, symptoms, and then, within a minute of that search, Toyota Highlander?"

"Yes."

Open original post on X

9:29:34 AM ET
"You said Ms. Birchmore conducted no searches about bleeding about making no searches for bleeding after Jan 20th?"

"I don't believe I said no searches, I said she didn't discuss it again in her messages."

Open original post on X

9:31:07 AM ET
"Okay, and is this Ms. Birchmore's ultrasound report from Jan 25th?"

"Yes."

"And this has a sub[mumbled] hemorrhage?"

"I'm not a medical expert, but it is my understanding is that would not require there to be outside bleeding."

"What was the measurement of the sub[mumbled] hemorrhage"

".9 x 2.9 x 1.9 cm"

Open original post on X

9:32:26 AM ET
"Were you aware of reports that Sandra was making to her OBGYN about her mental health?"

"Yes, she anxious."

"Anything about depression?"

"Yes, some things about depression as well. She was put on some medication for that. Zoloft."

"Did Sandra Birchmore also report she was in the ER gushing blood on Jan 19th?"

"I think she told someone that in the heat of an argument."

"Was that statement accurate?"

"I don't know."

"Have you ever seen any medical records about that incident?"

"I don't think so."

Open original post on X

9:33:09 AM ET
"Sandra said that in a recorded statement?"

"Yes."

"You also testified on direct about Sandra's medical record as a teen?"

"Yes."

"753 just for the witness please."

Open original post on X

9:34:13 AM ET
"Do you recognize this document?"

"Yes."

Open original post on X

9:35:05 AM ET
"And Sandra had an appointment with her Doctor in 2013?"

"Yes."

"In September of 2013?"

"Yes."

"I move to admit."

"Admitted and published."

Open original post on X

9:36:19 AM ET
"So this is a visit when Sandra was 16 years and 4 months old?"

"Yes."

"And historian means the doctor who has the patient history?"

"No, it is the person in the room who provides the medical history about the patient."

"Oh, but your record says the historian was mom in a prior record?"

"Yes, that would mean the mom relayed information to the doctor."

"And in this one the historian is listed as patient, so that would be Sandra?"

"Yes."

Open original post on X

9:37:34 AM ET
"And she's on medication for Asthma?"

"Yes."

"And it has her vital signs?"

"Yes."

"And she has irregular periods?"

"Yes."

"And that was resolved with OCP's?"

"Yes."

"And what are those?"

"Oral contraceptives."

"And that is the same oral contraceptive referenced earlier?"

"Yes., that's what she said, yes."

Open original post on X

9:37:52 AM ET
"And Sandra denied engaging in sex, alcohol or tobacco?"

"Yes."

Open original post on X

9:38:35 AM ET
"Um, in addition to speaking to Sandra's medical and mental health providers, you also spoke to her family members and friends?"

"Yes."

"And some of them said she had a tendency to..."

"Objection."

"Sustained as to this. You can ask another question."

"Did any of them share with you..."

"Objection."

"Sustained."

Open original post on X

9:39:43 AM ET
"You said Sandra told a friend that she was gushing blood on Jan 19, 2021?"

"That's what she said during an argument."

"What did you mean? What were you trying to get across with that?"

"Objection."

"Overruled."

"The argument was over an unpaid amount of money. Ms. Birchmore said I haven't paid you because I am in the hospital and I was bleeding."

Open original post on X

9:40:40 AM ET
"And is it your testimony, umm, that Sandra said that as an excuse for not paying a debt?"

"Objection."

"Sustained."

"Was that excuse true or not true?"

"She has bleeding on the 18th and 19th, and it had stopped by the 21st, but whether that was an excuse, I don't know, it's just what she said."

"Was that a pattern as to Ms. Birchmore."

"Objection."

"Sustained as to this question."

Open original post on X

9:41:58 AM ET
"Is this a text exchange between Ms. Birchmore and Joshua Heal?"

"Yes."

"Who is Josh Heal?"

"The former Stoughton Animal Control Officer, in training at the time of this message to become a Stoughton Police officer. They were friends."

"Were they intimiate?"

"Objection!"

"Overruled, lay foundation though."

Open original post on X

9:42:57 AM ET
"In these messages, was Joshua Heal feeding information to Ms. Birchmore?"

"Objection! may we be heard?"

"Yes."

Sidebah!

Open original post on X

9:43:17 AM ET
The messages are up on the screen but they are too small for us to read.

Open original post on X

9:44:31 AM ET
Sidebah is still ongoing.

Farwell sits with his chin rested in his left hand.

Open original post on X

9:47:42 AM ET
"Is this the text exchange where Josh Heal tells Sandra Birchmore Matt Farwell and his wife that they are expecting their third child."

"Yes."

Note; Farwell's company, named after his three children, confirms his third child is named Joey (the same name as his alter ego).

Open original post on X

9:48:29 AM ET
"Did Sandra mention the day she had her last period to Mr. Heal?"

"She said October."

"Was she right about that?"

"It was actually a few weeks later."

"Okay, and then she says she hopes Matt Farwell leaves his wife?"

"Yes."

Open original post on X

9:49:50 AM ET
"This is where Sandra Birchmore says she is going this month to find out if she is pregnant?"

"Yes."

"And she says better hope I'm not because yikes?"

"Yes."

"And Sandra was not pregnant at the time?"

"Not at that time."

"At Sandra then shows Heal a letter she has prepared for Matt Farwell's wife from the months prior?"

"Yes."

Open original post on X

9:50:32 AM ET
"And Sandra Birchmore said she hadn't had a period for a few months in October of 2026?"

"Yes."

Open original post on X

9:52:06 AM ET
"How of Sandra's 2017 legal settlements were left in 2021?"

"Probably none."

"What about the money from the lawsuit over her mom's house?"

"She got about $10,000 from that in 2020."

"How much of that money was left on Feb 1, 2021?"

"Her bank statement indiciates her money went up and down every month."

"Did you know she lost some money in an apartment rental scam?"

"Yes, she was a victim of a rental scam but it was before the 2020 settlement."

Open original post on X

9:53:31 AM ET
"Sandra had 21 absences from when she was in the 6th grade?"

"I don't think I reviewed attendance records before high school. I don't know about middle school records. Those could be excused or unexcused. I don't know."

"What about Matthew Farwell's record of attendance?"

"Yes."

"And you said Matt Farwell dropped out of high school?"

"I didn't say that but he did."

"And then Matthew Farwell joined the..."

"Objection."

"Sustained as to this."

"Did he get his GED?"

"Yes."

Open original post on X

9:55:21 AM ET

"You said there was a letter in the notes app of Matt Farwell's phone?"

"Yes."

"This a letter from Matthew Farwell's Iphone form jan 8th, 2021?"

"Yes."

"To whom it is addressed?"

"It says Senator/Representative ???"

"Who is it signed by?"

"Question mark."

Open original post on X

9:56:16 AM ET

"This talks about a law that was passed in Massachusetts?"

"It was a bill, not yet a law."

"And the author wants assistance on the newly formed or proposed law?"

"Yes."

"And they're saying that chokeholds can be non-lethal?"

"They can be yes."

"And the author says non-lethal force is better than lethal means?"

"Yes."

Open original post on X

9:56:44 AM ET
"The phrase in the law about choking is in quotation marks, right?"

"Yes."

"Is that from the law?"

"Yes."

Open original post on X

9:57:04 AM ET
"Did Matthew Farwell ever email this letter or sign it?"

"I don't know if he mailed or printed it. I have no idea."

Open original post on X

9:58:14 AM ET
"Did Ms. McNamara or the Union Mass Cops send a letter to Matthew Farwell about this bill?"

"There is a letter, I believe so yes."

"Did you talk to Chief McNamara about this legislation?"

"Yes, I believe so."

"Did she have a memory of this legislation?"

"Objection."

"Sustained."

"And Matt Farwell was the union president for the police department at the time?"

"Yes."

Open original post on X

9:58:37 AM ET
"Would legislation impacting law enforcement be something a union president would address?"

"It could be."

Open original post on X

9:59:15 AM ET
"Chokeholds have not been a commonly accepted practice in Massachusetts for decades?"

"I don't know, their tactical trainings don't specifically outline what retrain trainings they get. I saw nothing at all."

Wow.

Open original post on X

10:00:24 AM ET
"Were you there when Matt Farwell was arrested?"

"No."

"Have you reviewed body cameras from the arrest?"

"Yes, our policy regarding use of body worn camera is that they are turned on prior to a pre-planned arrest or search and then, once the arrest turns into an investigation of any kind, they turn them off. Here, the defendant was observed and the arrest was delayed for purposes of observation."

Open original post on X

10:00:49 AM ET
"Was Matthew Farwell with his young son when he was arrested?"

"Yes."

"Flashbangs were used to effectuate the arrest?"

"Objection."

"Sustained."

Open original post on X

10:01:25 AM ET
"There's no body camera footage of this moment?"

"With a dynamic situation that switched from an investigation to arrest so quickly, it would not be expected to turn them back on, no."

Open original post on X

10:02:07 AM ET
"You walked about self harm memes on Sandra's IG cache?"

"I don't know if they're self harm memes. You showed me some images from the cache."

Open original post on X

10:03:17 AM ET
"You got Matthew Farwell's IG records?"

"No, I don't think so."

"For Sandra Birchmore's?"

"No."

"Why?"

"We got that data from their phones."

"But you did a Facebook search warrant?"

"Yes."

Open original post on X

10:04:01 AM ET
"Was Sandra Birchmore wearing an Apple Watch?"

"Yes."

"When did you learn this?"

"When we got the crime scene pictures from the State Police in April of 2024."

Open original post on X

10:05:02 AM ET
WILD!

Brian Tully and John Fanning waited until April of 2024, the start of Karen Read's first trial as to the death of John O'Keefe, to hand over to the FBI crime scene photos from the 2021 death of Sandra Birchmore.

Brian Tully, I know what you did in April of 2024!

I told the FBI!

Open original post on X

10:05:50 AM ET
"At the time the federal investigation commenced, Dr. Capo-Martinez found Sandra Birchmore died by hanging, suicide?"

"Yes."

"And that was provided to Dr. Zoey Sundell?"

"Yes."

Open original post on X

10:06:19 AM ET
"Did you record that call?"

"No, it was an inter agency consult."

"It was a consult?"

"Yes."

Open original post on X

10:07:12 AM ET
"Did Dr. Zundell become a witness for you?"

"No."

"Did you then meet with a Dr. William Smock?"

"That was not the order of things. We arranged to meet with Dr. Smock in May because he is an expert in asphyxia, then we had the phone call with Dr. Zundell, then we met with Dr. Smock."

Open original post on X

10:07:59 AM ET
"What is Dr. William Smock's certification?"

"Emergency medicine with a specialty in choking."

Open original post on X

10:08:43 AM ET
"You collected evidence from state and local authorities as well, right?"

"Yes."

"You collected items from Chief Donna McNamara?"

"Yes, we got some boxes from them."

"Did you collect those documents in a parking lot?"

"Not at all of them. She did bring one box out to a car in a parking lot."

Open original post on X

10:09:19 AM ET
"Were you aware that Brian Holmes printed out a definition of..."

"Objection!"

"Sustained."

"May we be heard?" - Defense

"Not on this counsel."

Open original post on X

10:10:11 AM ET
"Did you also collect items from Sandra Birchmore's family?"

"Yes."

"And you have no idea what they threw out instead of brought to you?"

"No."

"Sandra's family found a Flamingo necklace and turned it in?"

"Yes."

"But that never made it into the possession of federal law enforcement?"

"Correct."

Open original post on X

10:11:04 AM ET
"Did you ever get any SnapChat records?"

"No."

"Why not?"

"It is my understanding that SnapChat doesn't keep records in a way that would be useful to us."

"So no request was made based on that assumption?"

"Objection."

"Sustained."

Open original post on X

10:11:44 AM ET
"Regarding Camera footage from Canton Woods, initially local LEO asked Carlos Varissimo to look for people who didn't appear to be a regular was Matthew Farwell?"

"Objection."

"Sustained."

Open original post on X

10:13:08 AM ET
"You said there were 40,000 messages between Sandra Birchmore and Matthew Farwell?"

"Yes."

"How many were sent by Sandra Birchmore?"

"I don't have a number. At the beginning, to about the summer of 2020, it was approximately 60% Ms. Birchmore and 40% Mr. Farwell. From the summer of 2020 until Feb of 2021, that percentage grew increasingly in terms of Ms. Birchmore sending messages to 70% and Mr. Farwell being 30%."

Open original post on X

10:13:46 AM ET
"Did Sandra Birchmore say she was blocked by Matthew Farwell in the past?"

"Yes, she said that one time."

"Did Matt Farwell block Sandra again after Feb 1st?"

"Yes, after Feb 1st and before Feb 6th."

Open original post on X

10:14:20 AM ET
"Did Sandra and Matt Farwell have meetups at other locations?"

"Yes, a hotel in Newport, Five Guys parking lot, Costco parking lot."

Open original post on X

10:14:39 AM ET
"A hotel in Newport, a Five Guys parking lot, a Costco parking lot."

Open original post on X

10:14:52 AM ET
"How long does Ring keep footage?"

"I don't know."

Open original post on X

10:15:58 AM ET
"There's more than one Matt references here, right?"

"Matt F. and Matt I. or a Matt J."

"At the time of this, it was not a Matt J. The Matt J. that I know of did not come into the picture at that time. A Matt I. is possible, though."

Who is "Matt I"?!?!?!

Open original post on X

10:16:46 AM ET
"What does fed bench warrant means?"

"Based on the note, I assume it means that because Sandra Birchmore was leaving her army unit, if she did not report to them, she could be arrested."

Open original post on X

10:17:51 AM ET
"Objection, this is from 2017!"

"Oh, I'm so sorry." - defense

"This is a 2017 medical record, no 2020, I am so sorry...did Sandra ever do this follow up?"

"Not that I know of."

Open original post on X

10:19:07 AM ET
"Did Sandra ever make any threats of self-harm?"

"She never made any threats that I know of. She would sometimes make statements like KMS when talking about school work."

Open original post on X

10:20:30 AM ET
"This is Sandra texting her friend Kaylnn?"

"Yes."

"And she has a picture of Matthew Farwell, his wife and his two children?"

"Yes."

"When she she get it?"

"From social media."

Note; It's a screenshot of a Facebook post.

Open original post on X

10:21:40 AM ET
"Did Sandra have any abortions or miscarriages?"

"No."

"Sandra said she was going to get IVF at one point to Matthew Farwell?"

"Yes."

"Did she ever do that?"

"There's no record of that."

"Is that an expensive process."

"Uh, yes?"

"Did Farwell ever tell Sandra if you reveal anything I will kill you?"

"I didn't see anything specific like that."

Open original post on X

10:22:26 AM ET
"In this text exchange Sandra Birchmore tells Becca Chandler that she was scared of what he had done?"

"Yes."

"Becca Chandler was interviewed by LEO about this conversation right?"

"Yes."

"And she said..."

"Objection hear say."

"Sustained."

Open original post on X

10:23:10 AM ET
"Sandra Birchmore told at least one friend that she wanted at least $7,000 a month from Matthew Farwell in child support?"

"The person told that to the Massachusetts State Police. That was in one of their records."

Weird.

Open original post on X

10:24:17 AM ET
"Was Mr. Farwell looking in Sandra's closest to find space for the baby?"

"What? I don't recall anyone saying that."

"Did Sandra say, no way is my baby going in the closest?"

"Do you have a record of that?"

"Exhibit 243, this was an email Sandra Birchmore sent about hosting her own baby shower?"

"Hosting her own baby shower? Are you talking about an email or a text?"

Note; this is very confusing.

Open original post on X

10:24:50 AM ET
Why is Farwell's defense suggesting he was scoping out Sandra Birchmore's closest before she died in order to "find space for the baby to live?"

This is ridiculous.

I object!

Open original post on X

10:25:21 AM ET
"In her text exchange with Joshua Heal, Sandra said she got it in writing that Matthew Farwell would sign the birth certificate. Have you found in anything in writing to confirm that?"

"No."

Open original post on X

10:26:04 AM ET
"Josh Heal tells Sandra Birchmore that Matthew Farwell will go to court, right?"

"Yes."

"He's going to request a DNA test..."

"Objection."

"Counsel, are we talking about what is in 239?"

"Yes."

Open original post on X

10:26:41 AM ET
"Was Sandra told that about Farwell going to court, yes?"

"Yes."

"And Sandra said her lawyers were getting ready?"

"Yes, Sandra had spoken to lawyers."

Open original post on X

10:27:29 AM ET
"Ms. Birchmore bought a key at Walmart?"

"Yes."

"Does Walmart cut keys?"

"Apparently."

Note; it's a self automated kiosk and the charge is all at once.

Open original post on X

10:28:07 AM ET
"Does Mr. Farwell reject a key in the past?"

"Yes, but he also accepts a key at one point."

Open original post on X

10:29:09 AM ET
"Why leave the door open if he has a key, didn't Sandra text that the door was open on Feb 1st?"

"Objection."

"Sustained."

"Did Sandra Birchmore tell people she was convinced he would choose her and leave his wife?"

"Yes."

"How old was Sandra Birchmore in the sexually explicit text messages you shared yesterday?"

"In 2019 she was 21 or 22."

Open original post on X

10:29:36 AM ET
"You said those texts were fantasy?"

"Not all of them, no. Some of them very much read like someone remembering an actual event."

Open original post on X

10:30:37 AM ET
"Some of them were graphic sexual fantasies though?"

"Yes, while he was on duty, some of them were fantasies. I didn't know if that was a potential issue for him if was if he was doing that while on the clock at work."

That was another rough end for the defense to a cross.

Open original post on X

10:31:27 AM ET
"You testified yesterday that Matthew Farwell had some miltary records, is that right?"

"Yes."

Open original post on X

10:31:53 AM ET
Small Towel stretch break.

Open original post on X

10:35:41 AM ET
"So this is, ummm, I'm sorry...this is a record from the VA um, from a PTSD disability benefits form, is that correct?"

"Yes."

"And in this interview Matthew Farwell indicates he had an affair in 2016 and 2017 and then then woman blackmailed him, threatened toe xpose the affair and then the woman later took her own life?"

"It says according to the defendant, yes."

"And he was an explosive ordinance disposal specialist?"

"Yes."

"As to the apple watch, if you know, you said you came into the case in March of 2024, personally, but you learned in the course of observing and testing of the watch two weeks ago that software was available as early as 2022 to make this extraction?"

"That's not my understanding. We asked experts in May of 2024 what testing could be done, and the advice we got back was that they couldn't do anything and be guaranteed to preserve the integrity of the data on the device. We didn't know the pin code for the device. We engaged a third party forensic expert until we learned in early September of 2026 that we could try another method. Her phone pin code ended up being the same as the Apple Watch but we knew if we got it wrong, the data may have been lost. The tech just never advanced to let us do an extraction without a pin code on the apple watch. If we tried it earlier and it was wrong, we could have lost the data."

Good answer.

Open original post on X

10:36:21 AM ET
"Where was the Apple Watch kept?"

"In our evidence control room?"

"It was in a bag or cardboard box?"

"It was in a bag and then, once filed, it would go into the evidence room."

"Was it in the same box as other evidence?"

"No."

Open original post on X

10:37:14 AM ET
"Was it ever put into a cardboard box with other items?"

"Yes, when they were transported to this building to show them to the defense. Before that they were stored in the grand jury control room and, also, some of the items were in the evidence control room, which is a different room."

Open original post on X

10:38:42 AM ET
"Jessica Hyde did the extraction of this apple watch, right?"

"Yes."

"And Jessica Hyde told you that the device she had, the cord that she had ... I think it's called a dongle, I don't know either... that she obtained it pre-tariff?"

Open original post on X

10:39:04 AM ET
"Yes. I don't know when the tariffs were imposed."

"Thank you, nothing further."

Open original post on X

10:39:55 AM ET
Re-Direct now;

"Did your team speak directly to Apple itself about the apple watch?"

"Yes."

"Is there a way to get into that Apple watch today, after talking to Jessica Hyde, the FBI itself and Apple, is there a way to get into that watch?"

"Objection."

"Sustained as to form."

Open original post on X

10:42:38 AM ET
"You were asked whether you labeled certain messages between the defendant and Ms. Birchmore as fantasy...can you bring up 279, this is in evidence, your honor?"

"At 11:09 on jan 3rd, the defendant says did you like it was I slow enough?"

"Yes, but please don't grab my hands behind me. You can grab my wrists not my hands. Did you cum though?"

"Yes, next time it won't be so gentle though. Why couldn't you relax?"

"I started having a panic attack when you grabbed my writs from behind."

"It felt so good having you fight back and tense up. It was so tight. Can we do that again, can I force you down?"

"Yes, but please use condom and a lube and hold my hand?"

"What if I just do it?"

"I wouldn't be mad...why do you like having the power over me?"

"Yes."

Open original post on X

10:43:20 AM ET
"It felt like it was really like the r-word baby...I'll hold you after so you can relax and calm down."

"I'll be honest, I was in tears after you left."

"It's okay, you don't have to let me do it again. I'll stay after though, next time, so you can recover."

Open original post on X

10:45:28 AM ET
"You were asked on cross about a certain journal entry, exhibit 653, as you bring that up I can raise another issue, you were asked on cross whether you observed text messages from the defendant to Ms. Birchmore where he said if he told anyone he would kiil her?"

"Yes, I said I couldn't recall."

"What if anything did you see about the defendant saying he would be careful to not put things in writing?"

"He would say in many messages that he would rather talk in person."

Open original post on X

10:46:33 AM ET
"When is this journal entry from?"

"2017."

"This is not from 2020, when Sandra Birchmore's aunt sold her house, is it?"

"No."

Open original post on X

10:47:32 AM ET
"You were asked on cross about messages from Dec 28th, 2020, was that a complete record or did

that have missing messages?"

"I don't recall."

"440 for the witness please."

"Are these some of the texts from the defendant and Ms. Birchmore that day?"

"Yes."

Admitted as 440 and published.

Open original post on X

10:49:07 AM ET
"Please read the messages omitted from the defense exhibit;

"And you hurt me from day one. After that we don't need to deal with this tomorrow. I'll deal with this on my own. It's your decision you can say I don't know how to treat people but I didn't p[lay a stupid head game with a girl for years and try to take shit back. you're really going to fucking ignore me now2, seriously, you stated the other night that if I gave you a few months of trying when you asked. I've asked you in the past why you stayed and, not once, did you give me the reason you just gave me, which makes it clear you didn't want to stay with me from the start."

Open original post on X

10:49:59 AM ET
"I was never cold hearted towards you until the past year or two. Are you okay, I'm not asking to be a bitch, I'm asking in the way of, 'are you okay tonight until we sit down?'"

Open original post on X

10:50:47 AM ET
"You were shown a September, 2013, medical record where Sandra said she was not smoking, using alcohol or having sex?"

"Was Sandra's doctor a male?"

"Yes."

"Have you reviewed a medical record from before that with Dr. Brown, in 2013, in May, where Sandra said she was sexually active?"

"Yes."

Open original post on X

10:51:48 AM ET
"What does something being in a cache mean?"

"It means, without other evidence, the data being in the cache can't be confirmed to have been viewed by the person who was using the phone."

Open original post on X

10:53:34 AM ET
"Please look at this exhibit and identify it."

"These are the cached images from Ms. Birchmore's IG from 6:30PM until 7:49pm."

"Do you see images related to the Boston Bruins?"

"Yes."

"And how many cached images are there from that night?"

"224 pages. 4 images per page. So around 900."

"965 from that time?"

"Yes."

"And you were shown two yesterday?"

"Yes."

"And can you say if she saw those two images?"

"I cannot."

"Nothing further.

Open original post on X

10:54:29 AM ET
Re-cross.

"Would an IG search warrant have been helpful?

"It wouldn't have hurt but we had the data from the phone."

"The letter from 2017 not 2020, you said it was from 2017 not 2020 right?"

"Yes."

Open original post on X

10:55:18 AM ET
"Does this 2017 exhibit indicate some challenges at home?"

"Yes."

Open original post on X

10:55:31 AM ET
"How old was Sandra in Jan of 2020?"

"She was 22."

Open original post on X

10:56:00 AM ET
"You said they were careful with texts, right?"

"He stated several times that he did not want to speak over text."

"How many texts are we talking about in this case?"

"Tens of thousands."

Open original post on X

10:56:54 AM ET
"He told her to delete the texts?"

"Yes."

"But he did nothing to delete data from the devices found in her apartment?"

"The devices were found in her apartment."

Open original post on X

10:57:31 AM ET
"Nothing further."

"You are excused, thank you."

"421 is admitted."

Open original post on X

10:57:41 AM ET
"Counsel let's take our break!"

Open original post on X

10:59:43 AM ET
God bless you all.

Thank you so much for your support of my word.

We will be back at 11:20!

Venmo: https://t.co/aS1seZFGwv

Paypal = https://t.co/T02firu36i https://t.co/BAiszDsuaM

Open original post on X

Dr. V — Sandra Birchmore's OBGYN

11:21:56 AM ET
We are back from recess. I have consumed an entire double white chocolate mocha in 7 minutes.

Let's do this.

Open original post on X

11:22:40 AM ET
This is Sandra's OBGYN.

We will call her Dr. V.

She was an attending for about 8 years.

She got her undergrad degree in biomedical engineering, and then medical school then OBGYN residency for four years.

Open original post on X

11:24:12 AM ET
"How did you know Sandra Birchmore?"

"She was one of my patients."

"Jurors, I will give you an instruction here; you are about to hear testimony from this witness both about facts and opinions. Fact testimony is what the witness saw, heard or did. Opinion testimony is about the opinion about the witness. As to facts, you may believe everything, part or none of it. As to opinion, the opinion is allowed because of the education or experience of the witness. You may accept all, none or some of it. Give it as much weight as you think it deserves based on the witnesses experience, education and all of the other evidence in the case."

Open original post on X

11:27:07 AM ET
"When was she your patient?"

"From 2019 until her passing."

"Dr. V, would you please grab that binder in front of you. Please look for tab with number 356. Please look through that and let me know if you recognize that tab?"

"That is a medical record for Sandra Birchmore. It is dated December 4, 2019."

"Your honor, I move exhibit 359 into evidence."

"It may be admitted and published."

"Dr. V, look in the middle of the page. The history of present illness section. It says there is a code for some testing. 22 YO - G1PO (gravitiva and para). What is that?"

"Gravitia is the number of pergnancies, para is the number of children)."

"Yes."

"What does it say next?"

"Has been with current male partner for 9 years. Does admit to cheating at times. Wants to have a pregnancy soon."

Open original post on X

11:27:59 AM ET
"What would you do if a patient said they wanted to be pregnant soon?"

"I would do counseling with them, and I would let them know what kinds of things they should avoid."

We see the record on the screen. Sandra saw her Doctor in 2019 for an STD test.

Open original post on X

11:28:50 AM ET
"What would you tell patients who want to get pregnant about having cats?"

"I would tell them to avoid directly contacting cat litter and to have a friend do so instead?"

"What about coloring your hair?"

"I'm conservative so I say avoid it because of the chemicals going into the roots."

Open original post on X

11:30:27 AM ET
"Dr. V, what is in that counseling section?"

"Reviewing pre natal vitamins, discussed things to avoid during pregnancy, even 3 months before conception, reviewing folic acid dose, at least 400mg, discussed keeping track of menses to asses when ovulation."

"What does that last sentence mean?"

"It's when ovulation ioccurs during someone's cycle."

Open original post on X

11:31:01 AM ET
Basically, ovulation occurs two weeks before a woman gets her period each month.

That is the best time to try for pregnancy.

Open original post on X

11:31:14 AM ET
"It's usually up to five days before and up to 1 day after. It is a seven day window."

Open original post on X

11:31:57 AM ET
"How do you tell your patients to track their menses?"

"There are a lot of apps on your phone. You put in the dates when your bleeding and it helps you keep track of ovulation. The true way is track it from the first day of your period until the next first day of your period."

Open original post on X

11:32:16 AM ET
"What does those apps do?"

"They track periods, cycles and ovulation."

Open original post on X

11:33:01 AM ET
"Tab 357 in the binder please. What is that?"

"Another medical record for Sandra Birchmore. It is from December 16, 2020."

"Your honor I move exhibit 357 into evidence."

"No objection."

"It may be admitted and published."

Open original post on X

11:34:16 AM ET
"Periods tracked in calendar, please, there are some dates. According to this record, from December 16, 2020, when was Sandra Birchmore's last menstrual period?"

"December 3, 2020."

"What does the next section say?"

"Currently trying for pregnancy with current partner of 7 years. Current partner is a cop."

Open original post on X

11:35:14 AM ET
"At the top of the next page, the very first line, what does it say?"

"Mother and partner are twins."

"Why did you note that?"

"When I asked for family history of pregnancy complications that is what she stated."

"Why is that relevant?"

"A twin pregnancy can be higher risk and requires more monitoring. Sometimes, not always, twins run in families. It's good information for us to asses."

Open original post on X

11:36:44 AM ET
"Dr. V, what are we looking at here?"

"December 28, 2020. The patient is Sandra Birchmore?"

"What kind of blood test is this?"

"HCG - quant."

A quantitative hCG (beta-hCG) blood test measures the exact amount of human chorionic gonadotropin in your blood.

"What was her HCg level?"

"99."

"What does that mean?"

"She was 1-2 weeks pregnant."

Open original post on X

11:37:28 AM ET
"Now to exhibit 359 please. This is not in evidence yet. Just for the witness and court and counsel. What is this?"

"This is another blood test result for Sandra Birchmore. It is from January 8, 2021."

Open original post on X

11:38:30 AM ET
"What is reflected in the Jan 8th, 2021, record?"

"Another HCG quant level...it was 9954."

"What does that number mean?"

"That means the pregnancy is progressing and has grown since the last time the level was checked on December 28, when it was 99."

"What was the gestational age of Ms. Birchmore's fetus on Jan 8, 2021?"

"It looks like it would be 3-4 weeks."

Open original post on X

11:39:07 AM ET
"Exhibit 360 for the witness and counsel please, or you can look in the binder, Doctor. What is this?"

"This is an ultrasound report for patient Sandra Birchmore. It's from January 18, 2021."

Open original post on X

11:40:36 AM ET
"You said a moment ago this is an ultrasound record, according to this record, as of January 18th, 2021, what was the gestational age of Ms. Birchmore's fetus?"

"Six weeks and 4 days."

"Was it in her uterus?"

"Yes."

"Did it have a heart rate?"

"What was the baby's heart rate on Jan 18th, 2021?"

"167."

"What does that mean?"

"It means that there is a heart rate present and it is a viable pregnancy.":

"What was the estimated due date?"

"September 9, 2021."

Open original post on X

11:41:12 AM ET
"What is a perigestational hemorrhage?"

"A perigestational hemorrhage is a collection of blood that forms between the uterine wall and the chorionic membrane (the outer sac surrounding the embryo or fetus) during pregnancy."

Open original post on X

11:42:03 AM ET
"What is this?"

"This is more common these days, we see it more because of ultrasounds, it is a small group of cells that leads to bleeding between the fetus and the cell wall. It shows up as spotting. Sometimes it can expand, and, if it does, it can compromise a pregnancy."

Open original post on X

11:43:40 AM ET
"Have you treated other patients with perigestational hemorrhages?"

"Yes, I have."

"Objection."

"Overruled."

"What do you do if a patient has a perigestational hemorrhages?"

"I would tell the mom to check her blood type because her the baby's blood and the mom's blood could mix and if they are a problematic mix then we may have some issues."

"What was Sandra Birchmore's blood type?"

"O+."

"Was that a problem?"

"No, because that is not a blood type that can cause a negative interaction."

Open original post on X

11:45:21 AM ET
"I told Sandra this could be an implantation bleed, we should watch it. I told Sandra you may have some cramping or bleeding. Please let us know if you have had either. I also give them some restrictions. Pelvic rest and any extreme physical activity."

"What is pelvic rest?"

"No intercourse of any kind in the vaginal region."

"Is that the same as bed rest?"

"No."

Open original post on X

11:46:01 AM ET
"What is this exhibit?"

"It looks like an internal portal discussion about Sandra Birchmore."

"What is a health portal?"

"This is our internal messaging system that we use among providers in the same medical group and also among our patients and providers."

Open original post on X

11:46:31 AM ET
"Who are the people in this discussion?"

"A medical assistant, Sandra's primary care doctor, that team."

Open original post on X

11:47:34 AM ET
"Who sent this message?"

"Sandra Birchmore on Jan 18, 2021 at 3:41AM."

"Can you read it?"

"Hi I called earlier in the week on Wednesday because I was spotting, then it stopped. I had some spotting yesterday. I woke up today with some light spotting. I wasn't spotting at all until I had sex last Tuesday. Is this a bad thing. Do I need to be concerned?"

Open original post on X

11:48:20 AM ET
"Why do women have spotting during pregnancy?"

"Most often, it is due to the cervix. During pregnancy, the cervix has extra blood. So even something like an ultrasound or pap smear can lead to blood, and certainly something like penetration as well, and that can show up as spotting."

Open original post on X

11:50:16 AM ET
"Who wrote this message?"

"Sarah K. She is a midwife in my practice. It was Jan 18, 2021."

"What does it say?"

"Patient called, she is not spotting today. Patient says the father of the baby (FOB) is a twin, her mother is a twin, and her first cousin just had twins. I put in for another ultrasound next week."

Open original post on X

11:51:04 AM ET
"What is this message?"

"A message from Sandra Birchmore through the portal on January 20th, 2021."

"What does it say?"

"It is a message to a nurse in my practice saying, 'Hi I thought I would let you know the bleeding did slow down a lot, it's not even close to a period anymore.'"

Open original post on X

11:52:04 AM ET
"How did you asses your patients' mental health?"

"I usually screen them multiple times before, during and after the pregnancy."

"Why?"

"It can impact the mom's health, the health of the fetus and the health of the baby as it grows. It is considered an adverse childhood exposure, just like alcohol in some ways, as to how you would consider the impact."

Open original post on X

11:53:40 AM ET
"How do you screen them?"

"I ask them about previous mental health, I use a 10 question screener on a 1-3 scale for each question, with a total score up to 30. The score gives us an idea how they are feeling."

"What is the last question?"

"In the past 7 days have you had any thoughts of hurting or harming yourself?"

"What does it mean if the answer there is 0 points?"

"It means they are not suicidal at the time and they have no suicidal ideation."

Open original post on X

11:55:00 AM ET
"What is this?"

"A telehealth record from a visit with Sandra Birchmore on Jan 21, 2021."

"What was her score overall on that test?"

"17."

"What was her score on the last question?"

"0."

Open original post on X

11:55:52 AM ET
"What did you do after seeing the score of 17?"

"I looked in my notes to see if the score was vastly different than it was in the past. She was in therapy twice a week, but the score went up slightly, so the next step was to start medication, which she was eager and willing to do."

Open original post on X

11:56:20 AM ET
"Had heavier bleeding on 1/29/21, seen at Good Sam."

Wow, so Sandra didn't lie, she was in the hospital.

The defense swung and missed.

Open original post on X

11:56:38 AM ET
Don't call Sandra Birchmore a liar.

She'll get ya' in the end.

Open original post on X

11:57:15 AM ET
"I want to go back to medication, did you in fact talk with Ms. Birchmore about therapy and medication?"

"I did."

"You said she was in therapy?"

"Correct."

Open original post on X

11:57:59 AM ET
"What did you say about medication?"

"I talked about the medication we use during pregnancy, whether they have used this medication in the past, our first line therapies, and what we use."

"And what is that?"

"Sertaline or, its otherwise known as Zoloft."

Open original post on X

11:58:43 AM ET
"After the sentence about the EPDS test there's something that starts initially?"

"Initially declined meds, but is interested today. Patient reports good results with Zoloft in the past. Has not been on medication for the past 9 years. Reviewed safety profile of Zoloft."

Open original post on X

11:59:43 AM ET
"What did you do to review the safety profile of Zoloft?"

"I told her about the side effects, the common use of this medication, side effects that may start initially but go away over time, but also why mental health issues left untreated can have their own serious consequences for the mother and the baby."

Open original post on X

12:00:37 PM ET
"What type of drug is Zoloft or sertraline?"

"An SSRI. A selective serotonin reuptake inhibitor?"

"What does that mean?"

"It supports extra serotonin in the brain."

Open original post on X

12:01:25 PM ET
"Why did you choose Zoloft?"

"It's commonly used in pregnancy, she had tolerated it before, it is important to treat someone, because under treated mental health can have worse consequences, and long term harm can be caused to the child as well, and we want to avoid that."

Open original post on X

12:03:39 PM ET
"Are you aware of a black box warning on Zoloft?"

"Yes, that is a warning placed on the medication, visible to all patients, that lists some of the harmful effects of taking this medication."

"Did you consider that prior to giving this medication to Ms. Birchmore?"

"Yes."

"What was the initial dose of Zoloft that you gave to Ms. Birchmore?"

"50 mg, to increase after that."

"How did you decide on that dose?"

"I knew she had tolerated it before. I knew when I see anxiety in pregnancy it sometimes requires a higher dose to help the patient feel treated compared to depression. That's why I started at 50mg, so we could move up from 1, to 2, to 3 tables over time."

"What is the suggested dose for anxiety in general?"

"That is outside of my practice. My guidelines focus on women in pregnancy."

Open original post on X

12:03:57 PM ET
"For this patient, I wanted to reach a level of 150mg, eventually."

Open original post on X

12:04:42 PM ET
"You said Ms. Birchmore scored a 0 on the last question, about self harm?"

"Yes."

"What would you have done if she scored above a 0?"

"I would have had her evaluated right away, at the hospital or at my office, depending on where she was."

Open original post on X

12:07:21 PM ET
"What did you tell Sandra Birchmore about side effects of Zoloft?"

"I told her to keep close tabs on it and tell me right away if any came up?"

"Did she do that?"

"Yes."

"Exhibit 561, page 5 please, the second message. Thank you. Dr. V, who is this message from?"

"This is from Sandra Birchmore, on the health portal. It was sent on Jan 22, 2021. It was the day after I first gave Sandra Zoloft."

"I don't recall."

"What does the message say?"

"Hi, I took the Zoloft today, it made me feel a little bit anxious. Should I take a lower dose?"

"Yes, I think this means you should lower to a half dose. Let's switch to a half tablet for five days. I would also suggest you take it at night time. Thanks for keeping me informed. Sincerely, Dr. V."

Open original post on X

12:07:48 PM ET
"How many messages did Sandra send through the portal?"

"She sent multiple messages, and she always responded to us, and other providers, when we had questions."

Open original post on X

12:08:50 PM ET
"What is this exhibit?"

"Another ultrasound report for patient Sandra Birchmore?"

"What is the date?"

"Jan 25, 2021."

"At the bottom it says measurements and calculations, what was the estimat3ed gestational age of

Ms. Birchmore's fetus on that day?"

"Seven weeks and 4 days."

Open original post on X

12:09:26 PM ET
"Was the fetus 14mm in length?"

"Yes."

Open original post on X

12:10:23 PM ET
"What if anything does this record reflect about the heart rate of Ms. Birchmore's fetus?"

"The fetal heartbeat was 167 beats per minute."

Long pause.

"What does that mean in terms of her pregnancy?"

"That means the pregnancy continues to be viable."

Open original post on X

12:13:06 PM ET
"What does LMP stand for?"

"Last menstrual period. December 3, 2020."

"How did you find when Ms. Birchmore's baby was conceived?"

"We used her menses, which she tracked so well. The date was between December 7 and December 17, of 2020."

"Why a 10 day window?"

"This is because not everyone ovulates on the same day every cycle. She has a range of 3-4 days as to when she could have ovulated."

Open original post on X

12:14:17 PM ET
"What does it say under impression"?

"Viable intrauterine pregnancy."

"What does that mean?"

"It means the pregnancy was continuing at this time."

Of note; a viable intrauterine pregnancy (IUP) means a fertilized egg has implanted and is growing normally inside the uterus with a visible embryo and active fetal heartbeat.

Open original post on X

12:15:37 PM ET
"What is this exhibit?"

"This is a medical record from Dr. Jennifer Goldblatt. She is a NP in my practice."

"Turning to page 9, under the notes on the top of the page, if you could just zoom in on that. What does it say under the first bullet point, please doctor?"

"Zoloft 25 mg at night, no side effects, will increase to 50mg on 1/28. Denies nausea, vomiting and cramping."

Open original post on X

12:16:11 PM ET
"Exhibit 367 please. Do you recognize this?"

"This looks like another telehealth visit for patient Sandra Birchmore?"

"This is from Jan 29th, 2021."

"I move to admit exhibit 367."

Admitted and published.

Open original post on X

12:18:00 PM ET
"Bottom half of that page, HPI, history of present illness, can you read the first few lines there, Doctor?"

"23 year old, G1 P0 at 8 weeks. 1 day telehealth visit for depression and anxiety symptoms. on Sertraline, seeing therapist twice a week on zoom. Next OBGYN visit on Feb 17, 2021."

Open original post on X

12:19:54 PM ET
"Did Ms. Birchmore report any side effects other than jitteriness?"

"No she did not."

"Did you consider telling her to stop taking Zoloft?"

"No, because it takes a while for the medication to get to a level where it starts working. This side effect, jitteriness, is common. She was already in therapy, and the medication was tolerated at 25mg."

Open original post on X

12:20:39 PM ET
"If Ms. Birchmore told you her anxiety also got worse, would you have done something?"

"Yes, I would have asked further questions and, if she indicated signs that were concerning, I would have had her come in."

Open original post on X

12:20:54 PM ET
"What else did you document?"

"Patient reports no further bleeding at this time."

Open original post on X

12:22:28 PM ET
"What impact was the hemorrhage having on Ms. Birchmore's pregnancy?"

"We were watching, but it had no impact. Sometimes it just disappears in the next ultrasound."

"On Jan 29, 2021, what did you suggest to Ms. Birchmore as to the hemorrhage?"

"I suggested continued pelvic rest."

Open original post on X

12:24:08 PM ET
"What did you tell Ms. Birchmore as to follow up with you?"

"With regards to both her mental health condition and the hemorrhage, I told her to keep us abreast with any changes, which she had already been doing so great with, and that we would follow up with her as to the next ultrasound. We should have noted the high risk of her pregnancy and we have sent her to an OGBYN with a focus in high risk pregnancies for further care in cooperation with our office."

"Was this a pregnancy that Sandra Birchmore wanted?"

"Yes."

Open original post on X

12:25:47 PM ET
"Was Jan 29, 2021, the last time you communicated with ms. Birchmore?"

"Yes."

"How did you learn of Ms. Birchmore's death?"

"A staff member told me in my office."

"How did you react to Ms. Birchmore's death?"

"I was surprised."

"Why?"

"Objection."

"Overruled."

"Why were you surprised?"

"We had no indications of her destabilizing, she had no concerns for bleeding, she was doing everything an adult person is expected to do, she was showing up for her visits on time, she was communicating with us, she was holding a job. I expected her to follow up if there were any changes with her health."

Open original post on X

12:26:32 PM ET
"At the time Ms. Birchmore died was she carrying a viable fetus?"

"With the Jan 25, 2021, ultrasound, yes, she had a viable pregnancy."

Open original post on X

12:28:03 PM ET
"Dr. V, on Jan 29th, 2021, you told Ms. Birchmore to follow up with you if she had any concerns at all?"

"Yes, that is something I always do."

"Did she text you with any concerns regarding bleeding after Jan 29th, 2021?"

"No."

"Did she send any messages or call your office with any concerns regarding miscarrying after Jan 29, 2021?"

"No, she did not."

"Any calls or messages about self harm or suicide after Jan 29, 2021?"

"No, she did not."

"No further questions, your honor."

"Cross exam, Ms. Stevens?"

"Yes your honor, may approach the podium?"

Open original post on X

12:28:38 PM ET
Cross now.

Kim Stevens.

"You were an OBGYN doctor for 8 years?"

"Yes."

"Now you run your own company?"

"Yes, I help new moms."

Open original post on X

12:29:48 PM ET
"Tell me the important of obtaining the accurate history of a patient?"

"When I see someone who is pregnant, I rely on the patient to tell me their history to give me a better idea of potential complications. The history of present illness section is so important for that reason."

"Yes, and I gather from your testimony you encourage them to be forthcoming with you to help the patients?"

"Yes, I want to support them."

Open original post on X

12:30:37 PM ET
"And of particular concern to you are mental health conditions before and during pregnancy?"

"Yes, any practicing OBGYN will check on that, just like we would check on something like asthma."

Open original post on X

12:31:27 PM ET
"I think I read in one of your statements, some doctors may look at the post delivery period but you're also concerned about mental health in pregnancy?"

"Yes."

"And you spoke to Ms. Birchmore about that?"

"Yes."

"Okay, we're going to go through some records now."

Open original post on X

12:33:36 PM ET
"You were part of the Signature Healthcare branch of operations, yes?"

"Yes."

"So you'd have all Signature Healthcare records in your database even if they proceeded the date you first saw Ms. Birchmore?"

"I believe so, if the records are in the system."

"If those records were accessible, they would be important to consult when you start treating a new patient?"

"Not per se. Can I explain?"

"Please do."

"If someone comes to me, and they've been seen at Signature Medical since they were a kid, we don't go through 30 years of records in our intake appointment. I rely on the patient to report information to me, and then I review the chart with the patient as they bring information to my attention. Then the provider will check with the patient has had any changes since the last time that information was charted."

Open original post on X

12:34:03 PM ET
"So their history is tracked in the records, but the adult patients relay information to you and you then intake that information?"

"Yes."

Open original post on X

12:35:00 PM ET
"Move to admit exhibit 364."

Admitted and published.

Open original post on X

12:36:00 PM ET
"At this time Ms. Birchmore was 15 years old, right?"

"Yes."

"And it lists Prozac, 20mg?"

"Yes."

"And that's different than Zolosoft?"

"They are both SSRI's, but they have different names and they are different medications."

Open original post on X

12:40:14 PM ET
We are looking at a medical record for Sandra.

It says she had an STD at one point.

She was screened for STD's three times.

She had collapses and her BMI was between 25 to 29 at times.

Open original post on X

12:41:36 PM ET
"Would the person who has syncope as a diagnosis faint or fall to the ground?"

"Correct."

Open original post on X

12:42:28 PM ET
Now we look at a medical form.

It says that Sandra has a history of anxiety due to the loss of her mother and maternal grand mother.

Open original post on X

12:42:50 PM ET
"What does anxiety at baseline mean?"

"It means she has had that diagnosis as a chronic condition for a while."

Open original post on X

12:43:28 PM ET
"She told you she had no family support system, but she has friends?"

"Yes."

Open original post on X

12:45:11 PM ET
Towel is getting tired.

I can push through to lunch!

I can do this!

Open original post on X

12:46:18 PM ET
"What does this section of the report mean?"

"When I ask someone who has just learned they are pregnant, I asses how high-risk their pregnancy is, including pre-term delivery, no prior pregnancies, then, whatever criteria exists, if we meet that, then we suggest starting low dose aspirin to help protect the pregnancy."

"Okay."

Open original post on X

12:48:27 PM ET
"Was Ms. Birchmore a complicated patient to treat?"

"I don't know how to answer that."

"Given this medical history, was she a complex patient for a 23 year old?"

"What do you mean? In my scope of practice?"

"Yes."

"As I mentioned, she was a high risk pregnancy for many reasons. This report lists all of the medical problems she had in the past and usually providers would look at that, but as an OBGYN I may not always look at the same documents that the primary care doctor looks at, which is why we work with them as a team."

"Okay."

Open original post on X

12:49:57 PM ET
"Ms. Birchmore went to Good Sam after Zoomba on Jan 19, 2021?"

"Yes."

Open original post on X

12:51:41 PM ET
"The word high risk pregnancy has special meaning in your field?"

"Yes, it can be something as simple as a pregnancy showing twins, or as complicated as an ultrasound showing an abnormality of the fetus. Even mental health conditions can play a role in that designation."

"Thank you, Doctor."

Open original post on X

12:53:58 PM ET
"This is a record from Jan 18th, 2021, correct?

"Yes."

"Was there a cyst?"

"Yes, but it was the kind of cyst we expect to see when the egg gets release. That tells us what ovary ovulated!"

"Oh, okay!"

Open original post on X

12:55:08 PM ET
Big towel stretch.

The defense lawyer is asking about COIVD options for telehealth meetings in 2021.

Open original post on X

12:56:08 PM ET
"Seen at Good Sam, some spotting, ultrasound done, Jan 18-19, 2021."

Open original post on X

12:57:27 PM ET
"You relied on her to report the history and she reported good results with Zoloft in the past?"

"I reported she said good results with SSRi's in the past, and I remember writing Zoloft."

"And she told you she hadn't been on medication in the past 9-10 years?"

"Yes."

"But maybe she didn't say Zoloft?"

"I don't recall."

Open original post on X

12:58:17 PM ET
"You're familiar with the black box warning for Zoloft?"

"Yes."

"And it can cause serious side effects?"

"Yes."

"Including self harm or attempts at self harm?"

"Yes."

"Especially in the first few months of treatment?"

"Yes."

Open original post on X

12:59:23 PM ET
"And depression or mental illness are the most common causes of self harm according to the Zoloft black box warning?"

"Objection."

"Overruled."

"Yes."

"And the patient is to call you if they have thoughts of dying after starting Zoloft, or if they have new or worsening anxiety or depression?"

"Yes."

Open original post on X

1:00:06 PM ET
"Did she call and let you know that on the night of Jan 31st, 2021, into Feb 1st, 2021, she was texting that she couldn't sleep and didn't feel well?"

"Objection?"

"Basis in a word or two?"

"Foundation, knowledge."

"Well, counsel you can rephrase the question."

Open original post on X

1:00:53 PM ET
"Were you aware that during the night of Jan 31 through feb 1st 2021 that she was up during the night and not feeling well?"

"No."

"Your honor, if we may turn to exhibit 365, can we publish?"

"You may."

"What is this?"

"Medical record from Jan 25, 2021."

Open original post on X

1:02:19 PM ET
"Now, as you follow up on the hemorrhage, it has measurements listed, right?"

"Yes."

"And it was roughly the same size, maybe some percentage larger?"

"Yes, and I would say when we measuring on ultrasound with such an early pregnancy. We're using a vaginal probe. It's measuring a very tiny space. Even if someone measured it at the same day, on the same time, they won't get the same measurements. This could be an example of that."

Open original post on X

1:02:41 PM ET
"And you were monitoring this as her doctor?"

"Yes, we were monitoring it. It wasn't one of the reasons she was high risk."

Open original post on X

1:02:56 PM ET
"Counsel, given the time, lunch break! We'll resume at 2PM!"

Open original post on X

1:05:17 PM ET
"We have a witness not on our list for today. That witness is Mackenzie Palma. She is somebody who Ms. Birchmore talked to on December 29th to make pregnancy announcement and a homemade onesie. We expect her to be a short witness."

"Okay, we'll take our break!"

Open original post on X

2:02:17 PM ET
We are back from lunch break.

Dr. V resumes her cross from Kimberly C. Stevens.

Open original post on X

2:03:49 PM ET
"Dr, this is the office visit dated Jan 27, 2021, would you like to see the page before we start?"

"Sure."

"Okay here is the date from exhibit 366, and again the expected delivery route/plan notes anxiety and depression, asthma?"

"Yes."

"And the depression score was 17/30?"

"Yes."

"Then starting Sertaline, that is the Zoloft?"

"Yes."

"Who was Ms. Birchmore's therapist?"

"I don't recall."

"Did you speak with that person?"

"Yes, I just don't recall the name."

Open original post on X

2:04:57 PM ET
"Jan 21, 2021, 23 year year old, G1 (1 pregnancy) P0 (no live children), at 7 weeks, is that what it says?"

"Yes."

"Does that mean this is her first pregnancy? That "1" is the pregnancy she is in now?"

"Yes."

Open original post on X

2:05:58 PM ET
"Denies prior history of manic episodes or BPD?"

"Yes."

"Why is that of concern?"

"When we start a medication that increases serotonin in the brain, we don't want to make an underlying condition worse. An SSRI for someone with an underlying condition can make mania worse, for example."

Open original post on X

2:06:50 PM ET
"May we be heard on WhisperTech?"

"Yes."

Sidebah!

Open original post on X

2:08:38 PM ET
Long sidebah continues. I am resting my towel hands.

Farwell looks forward at judge intently. He has one ear bud in his ear. He shared it with Joanne Daley.

We are done at sidebah!

Open original post on X

2:09:47 PM ET
"If I may have the elmo projecting again?"

"You may."

"Exhibit 367 please?"

"I don't think this is in."

"Okay, for the witness only."

"What is the date of service?"

"Jan 29th, 2021."

Open original post on X

2:10:03 PM ET
"Was this the last time you had a medical visit with Ms. Birchmore?"

"Yes."

Open original post on X

2:11:49 PM ET
"She's at 8 weeks and 1 day?"

"Yes."

"Is this a telehealth visit?"

"Yes."

"And you discussed the change in dosages?"

"Yes."

"And they were changing recent to Feb 1, weren't they?"

"Yes."

"And if we look at the black box label on Sertaline, sudden changes in medication can cause adverse reactions?"

"Yes."

"And you spent 10 minutes in this visit with Ms. Birchmore?"

"Yes."

Open original post on X

2:13:30 PM ET
"Did you also do a 5 minute follow up reviewing the documents from that visit?"

"Well, yes, I may have followed up there to do some insurance coding. It's unclear."

"Do you normally follow up with patients once a month?"

"Well, it depends, early in pregnancy we will see them in the office once a month, but they will have ultrasounds or other visits around that. So they are seen more than once a month, and they have a team of care providers, so they have more than 1 visit per month."

Open original post on X

2:15:33 PM ET
"You told the FBI you were considering referring Ms. Birchmore to higher level care providers?"

"I said, if there were further concerns with a dose, I would bring in Mass Children Psychiatric Access Program For Moms. It's a division that supports OBGYN's to help moms get that kind of care during their pregnancy. These services are not always accessible, so that would have been my plan if there were further dosage issues."

Open original post on X

2:17:06 PM ET
"Actually, allow me to clarify, I would have consulted with someone from that service no matter what, even though I only had questions at that point, but I planned to consult with them going forward for Ms. Birchmore because I wanted to talk with them about the dosage I was using, the side effects, and otherwise. It is very important to get this care right away. That is why we provide this care in my office in consultation with other providers."

"And you had not yet contacted a mental health doctor about Ms. Birchmore?"

"Not at that point yes."

Open original post on X

2:18:54 PM ET
"In the course of your practice, and the suggestion of the black box warnings..."

"Objection!"

"May I finish my question?"

"You may."

...would you have wanted to know about whether Ms. Birchmore had an actual self harm attempt in the past?"

"Objection!"

"I am assuming this is to form?"

"And facts not as evidence, in your honor."

"Sustained as to form. You can rephrase, Ms. Stevens."

Open original post on X

2:19:36 PM ET
"Would you have wanted to know Ms. Birchmore had tried to over...."

"Objection! Facts not in..."

"Sustained!"

"...evidence!"

"I don't need the speaking objections counsel. I will sustain on this."

Open original post on X

2:21:46 PM ET
"Does this letter describe how Ms. Birchmore and her aunt started fighting and she says I was told to..."

"Objection!"

"Overruled counsel."

"...I was told to self harm myself, and to then to throw myself in a dump and then I was denied a ride home so I went home and attempted to OD, is that something you would have wanted to know?"

"In my purview, I am always going to ask the patient. I asked her if she had any thoughts of harming herself or otherwise, and, in my purview, she told me she had no such thoughts."

"Nothing further your honor."

Open original post on X

2:21:56 PM ET
"Redirect?"

"Yes, your honor."

Open original post on X

2:25:07 PM ET
"May I your honor?"

"You may."

"Good afternoon, Doctor. Counsel just asked you about a journal entry. Would it impact your answer if you knew that was over four years before Ms. Birchmore's death?"

"At the end of the day, I was treating her that day. She's more likely to commit suicide if she's left untreated. That's how I approach the treatment of my patients."

"Is this a record from your OGBYN office, the record from December 19th?"

"It is not."

"Did defense counsel allow you to review this entire 9 page record?"

"You can look at exhibit 363 in the binder in front of you if you'd like...I'd like to ask you about something on page 9 when you're ready."

"Do you see the heading where it says orders?"

"Under depression where it says orders, what does it say?"

"Start Sertraline, start 1 tablet, 25 mg daily, as directed."

Open original post on X

2:26:39 PM ET
"Here, under plan, does it say depression and anxiety started on Sertraline?"

"Yes."

"You were asked on cross about Ms. Birchmore telling others that she was having trouble sleeping and not feeling well on Jan 31st, 2021, in the evening, why might a pregnant woman have trouble sleeping?"

"Hormones. Every pregnant woman has hormones flowing through them. They have nausea."

"Can Zoloft also cause insomnia?"

"Yes."

Open original post on X

2:27:55 PM ET
"You were asked on cross about Ms. Birchmore not contacting your office after Jan 29th?"

"Yes."

"And you said Ms. Birchmore was communicative?"

"Yes."

"Did she reach out to your office if she had a question or concern?"

"Yes, sometimes she had multiple messages back and forth in the same day. She asked me for

ultrasound results on the day she was coming in to see my NP. She even wanted to keep me in the loop. She was very well advocating for herself and her care."

Open original post on X

2:29:21 PM ET
"Did Ms. Birchmore communicate with you when she had a question or concern?"

"Yes."

"What, if anything, did Ms. Birchmore communicate with your office regarding side effects?"

"She sent messages about the jitteriness bothering her. And not just once."

"Did she report anything about worsening depression or anxiety after starting the Zoloft?"

"Not that I know of."

"Did she ever report thoughts of self harm to your office?"

"No."

"No further questions."

Open original post on X

2:31:12 PM ET
"Recross?"

"Yes, your honor."

"Ms. Birchmore never took that Setraline in 2019 did she?"

"I wouldn't know how to confirm that answer for you."

"Let's look at exhibit 362, it has been previously..."

"It may be published."

"...admitted."

"This says she has not been on medication in the last 9-10 years, and that's an important fact, right?"

"Yes."

"And whether a patient has tolerated a certain medication is important to your treatment?"

"Yes."

"And 2019 is not 10 years before 2021 is it?"

"Yes."

Open original post on X

2:32:14 PM ET
"You were asked what reports Ms. Birchmore made to you about any cramping, or bleeding or symptoms?"

"Objection."

"Sustained. My memory counsel, and jurors, it is your memory that governs here, but my memory is that it was about sleep."

"You only knew what Ms. Birchmore reported to you, isn't that right?"

"Yes."

"Nothing further."

"You are excused."

Open original post on X

James Fitton — Stoughton Police Dispatcher

2:32:25 PM ET
"The Government calls James Fitton!"

Open original post on X

2:32:45 PM ET
The Dispatcher has taken the stand!

The $248 extortion!

It begins!

Open original post on X

2:33:22 PM ET
He is a tall white man.

He has a long red beard.

I shall call him red beard.

Open original post on X

2:34:09 PM ET
"Are you employed?"

"Yes, I work at the Town hall in the building department for the town of Stoughton since December

of 2022."

"How were you employed before that?"

"I worked as a public safety dispt6acher at the Stoughton police Department?'

"When did you start there?"

"Feb, 2018."

Open original post on X

2:34:37 PM ET
"What did you do there?"

"I took dispatch calls and assisted walk ins in the lobby?"

"Are there two lines, a 911 line and a business line?"

"Yes."

Open original post on X

2:35:27 PM ET
"Were you trained?"

"Yes, I took 3 classes."

"Is a dispatcher different than a police officer?"

"Yes, we are not sworn."

"Did you work a specific shift in Jan of 2021?"

"Yes, the 4-12 shift, but I worked 3-11."

"Do you mean 4PM to midnight?"

"Yes."

"And you worked 3pm to 11pm?"

"Yes."

Open original post on X

2:36:16 PM ET
"Did you come to know someone named Matthew Farwell?"

"Yes, he was a Stoughton Police Detective."

"Do you see Mr. Farwell here today?"

"Yes, he has a green and blue shit jacket on and a blue tie."

"May the record reflect that the witness has identified the defendant?"

"Yes."

Open original post on X

2:37:16 PM ET

"What was your relationship with Matthew Farwell in Jan of 2021?"

"Co workers."

"From March of 2020 until Feb of 2021 was the pandemic ongoing?"

"Yes."

"Did the Stoughton DP have protocols as a result?"

"Yes, M95 masks."

"What observations did you make of the defendant wearing masks at the Stoughton PD?"

"I don't recall him wearing a mask."

Open original post on X

2:39:10 PM ET

"Turning your attention to Jan 20, 2021, were you working that day?"

"Yes."

"Did a call come in at 7:40:45PM?"

"Yes."

"Do you recall this call coming in that day?"

"Not specifically that day."

"Do you recall coming in at that time?"

"Yes."

"And was the caller a female or male?"

"Female?"

"What does the row labeled conference in this document mean?"

"It means other people are listening in."

"How do you put someone on hold?"

"You put them on hold."

Open original post on X

2:40:59 PM ET
"It was a female caller calling to speak to Matthew Farwell. She wanted to talk about a relationship between her friend and Matthew Farwell."

"What did you do when you recieved that call?"

"I took down the caller's information, I don't remember if I wrote it down on a notepad or a scrap piece of paper, and then I proceeded to....ummm...take the information and then I went to talk to Detective Farwell at some point about the call.""

"Where did you do that?"

"In the detectives office."

"Who else was there?"

"No one."

"What did you tell him?"

"The caller and the nature of the call. Then he got audibly and visibly upset with me. His facial expression changed to anger and then he told me, umm, including expletives to never talk about this again and to never tell anyone again."

Open original post on X

2:44:13 PM ET
"You said that included expletives?":

"Yes."

"Was that angry reaction different than he had acted in the past?"

"Yes."

"What, if anything, did you do after that?"

"I returned to dispatch and reiterated to the desk officer, Officer Ronald "R.J." Letendr (spelling) was there, he told me to forget about the call."

"You said you had taken down what the caller had said on a note paper or scrap paper What did you do with that paper?"

"It got thrown out with my notes."

Open original post on X

2:45:12 PM ET
The defendant texted Fitton;

"Let's never discuss that again. That girl is fucking insane. Both of them are."

"Nothing further."

Cross.

Open original post on X

2:45:38 PM ET
"What, if anything, did you do after that?"

"I returned to dispatch and reiterated to the desk officer, Officer Ronald "R.J." Letendr (spelling) was there, he told me to forget about the call."

"You said you had taken down what the caller had said on a note paper or scrap paper What did you do with that paper?"

"It got thrown out with my notes."

OH MY GOD!

Open original post on X

2:49:07 PM ET
I am still shocked that we all just found out about Ronald "R.J." Letendre helping Farwell with the coverup of what was happening to Sandra Birchmore before her death!

He's got quite a history!

https://t.co/SHyIfigTSq

https://t.co/18Ih0HRfnB

Open original post on X

2:50:28 PM ET
"Did the woman call you about some kind of a debt?"

"Objection!"

"Sustained."

"How long did you talk with her?"

"I'm not sure."

"You said she was a woman?"

"Yes."

"You wrote her name down on a piece of paper?"

"Yes, we had a memo pad if someone called directly for an officer and sometimes we had scrap paper."

"So you treated this like a personal call to an officer?"

"Yes."

"And those came in through the business line?"

"Yes."

"It seemed like a personal call directed to Detective Farwell."

Open original post on X

2:51:47 PM ET
"If a caller had said a detective was engaged in sex with an underage child would you have noted that?"

"I would have given the call to a supervisor."

"Would that have been policy?"

"I don't know but that's what I would have done."

"But you didn't do that here?"

"No."

"After you took that call you spoke to Matt Farwell and he appeared to be angry?"

"Yes."

"And he said never speak to anyone about this again?"

"Yes."

"Were you friends with matt farwell?"

"I'd more define us as friends."

Open original post on X

2:52:26 PM ET
"You said Officer Ronald "R.J." Letendre was told about the call?"

"Yes."

"Did he listen to the call?"

"He was in the dispatch room when the call came in."

Oh my word.

Open original post on X

2:52:44 PM ET
Oh this is wild.

Wild I tell you!

"You said Officer Ronald "R.J." Letendre was told about the call?"

"Yes."

"Did he listen to the call?"

"He was in the dispatch room when the call came in."

Open original post on X

2:54:01 PM ET
"Was there a recording of this call?"

"At one point in time yes."

"Did the recording eventually get overwritten?"

"Objection."

"Sustained."

"I have no idea."

"Well, I sustained it, but okay."

"You threw away your notes?"

"At the end of every shift I threw away my notes."

"Are you saying that the calls you get were only documented in your notes?"

"No."

"Personal calls to officers go in your notes and get thrown away?"

"Correct."

"Nothing further."

"No redirect."

Open original post on X

3:02:28 PM ET
We have run as a pack to find Fitton.

I am a towel.

Open original post on X

3:08:23 PM ET
I have found Fitton.

I am with @MicheleMcPhee.

We await his exit from the building.

Open original post on X

3:11:50 PM ET
@MicheleMcPhee Michelle and I are literally standing in the middle of the court foyer waiting for Fitton.

The cameramen have every exit covered.

We have a second layer involving @ameliarstern1 at the door.

Open original post on X

3:13:27 PM ET
@MicheleMcPhee @ameliarstern1 He is on the move.

Open original post on X

3:17:55 PM ET
Here is the moment James Fitton left Moakley after today's bombshell Sandra Birchmore and Matthew Farwell testimony! https://t.co/wme358onBy

Open original post on X

Makenzie Palma — Pregnancy Announcement / Onesie Testimony

3:23:55 PM ET
"The government calls Jessica Katz!"

This was Sandra's potential lawyer.

Okay I ran out of the courtroom to catch Fitton on camera before posting that.

We are now on to another witness.

Video below;

https://t.co/PQTSoj2HaY

Open original post on X

3:24:58 PM ET
This is Makenzie Palma.

This is the woman who helped Sandra design a baby announcement.

She is an RN, who is an artist and knew Sandra in childhood.

They reconnected over IG. Then Sandra needed help with a custom onesie.

Open original post on X

3:26:02 PM ET
"How many oneisez did she give to you to pain?"

"Three."

"Did you paint the first one?"

"I did."

"What is this?"

"This is one of the onesies that I made."

"What did you send it?"

"January 26th, 2021. at 10:25PM."

"When did Sandra respond?"

"10:26PM."

"So, within a minute?"

"Yes."

Open original post on X

3:26:37 PM ET
"What design did she want?"

"She wanted a Disney design."

"Then you decided on a specific design?"

"Yes, Winnie The Pooh."

Open original post on X

3:27:26 PM ET
"On Jan 29th, 2021, Ms. Birchmore asked if you were working the 13th of February?"

"Yes."

"Will you take pictures with me after?"

"Yes."

"What did she want to take pictures for?"

"A baby announcement."

Open original post on X

3:28:14 PM ET
The exhibit is adorable.

It is a Winnie The Pooh design.

It is adorable.

We are very much enamored in the press room.

"Nothing further."

"Cross?"

"Yes."

Open original post on X

3:29:53 PM ET
"Where did you move from when you met Ms. Birchmore in 2nd grade?"

"I don't recall."

"Did you go to 4th and 5th grade with her as well?"

"Yes."

"Were 30 of you were in the same classroom and then you go together from year to year?"

"Yea, for the most part."

"Your mom babysat Ms. Birchmore when when she was little?"

"Yes."

"You said someone at Sandra's home was sick?"

"I don't recall. We did discuss it."

"How often did she come over?"

"Often. We would hang out a lot."

Open original post on X

3:30:40 PM ET

"She reconnected with you on December 29th of 2020??"

"Yes."

"Were you putting up your work on IG?"

"Yes."

"Did she tell you she found out she was pregnant the day before?"

"Yes."

Open original post on X

3:31:25 PM ET

"Then you designed the onesie and the wooden sign?"

"Yes."

"And you made her two of them?"

"Yes."

"That's all I have your honor."

"Any redirect."

"No."

Open original post on X

End-of-day proceedings and rulings

3:32:11 PM ET
"We have reached the end of our witnesses for today. I have to be downstairs for a ceremony. I imagine you won't complain, jurors, if we let you go know. Keep my instructions in mind. See you tomorrow."

Open original post on X

3:34:39 PM ET
"Counsel, be seated. Counsel, what is the line up."

"Tomorrow the government will call Dr. Roccio, Danya Hallway, Shawna McGrath, Carly Williams and then Stephanie Wait who is the criminalist at the state police crime labs."

Later this week;

"Betsey Duval can be here Thursday."

"Ms. Wade and Ms. Duval are the only experts for this week."

"Who is coming Thursday and Friday?"

"Thursday we will start with Duval, then Jason Pickard, and then Timothy Handler, Becca Chandler, then Sarah Sprule."

Open original post on X

3:34:51 PM ET
Jason Pickard Thursday!

Open original post on X

3:35:42 PM ET
"Counsel do I have an updated disputed exhibit list?"

"It's almost done your honor."

Open original post on X

3:36:39 PM ET
"Counsel, I need you to both send your exhibits to each other, then I can make the correct decision."

"We understand your honor."

Open original post on X

3:37:16 PM ET
"I would ask both sides, and I know everyone is working around the clock, please consolidate in one

email everything you want to tell us, that would be helpful. But I understand that is not always possible."

Open original post on X

3:41:04 PM ET
"Counsel, I know there was something unforeseen today, and I have my event at 4PM today downstairs, but I want to make sure dead time with the jury is limited. They have been very prompt. When we turn to the defense case, that applies the same as it applies now to the government. I would ask the government to keep updating me as to where you are so the defense knows to be ready with their witnesses."

"Counsel, there was one matter that I needed to return to because we didn't have time to do it yesterday. I did mention there would be parameters around the affairs. So, first of all, I see the special relevance as related to this issue of concealment, deletion of texts, wearing masks or not, or otherwise being convert about the relationships. I am not going to allow the government to argue that Mr. Farwell is somehow guilty because he did not engage in the same criminal conduct with the other individuals, which I am taking to be understood, Ms Cummings?"

"Yes, your honor."

"Your existence and duration of the relationship, the fact that the partcipants were adults and questions about what i would call concealment. SI there something else the government was seeking here counsel?"

"The final point would just be the proximity to the defendant's wife, relationship wise or physical proximity."

Open original post on X

3:41:47 PM ET
Did Matthew Farwell sleep with his wife's sister in his wife's presence?!?!?!

Oh dear God, who are the 3 women the DOJ is now allowed to call for the purposes of putting Matt Farwell's affairs on full display during the Sandra Birchmore trial?

Open original post on X

3:43:16 PM ET
Defense says,

"Would the court consider a limiting instruction?"

"I could say something like, this is the kind of evidence that can only be considered for one purpose. This is offered as bearing on intent and motive."

"Or, honestly, something that your honor said it is not offered to prove that Mr. Farwell is culpable here."

"Well, it bears on one of the elements they have to find, so I won't say it as broadly as that because I don't think that what you said is actually true."

"Anything else, counsel."

"No, your honor."

"Okay, see you in the morning!"

We are done!!!! God bless you all! What a day!

Open original post on X

3:45:18 PM ET
Thank you all so much for your support of my work.

God bless you all.

Donation information is below;

Venmo: https://t.co/aS1seZFGwv

Paypal = https://t.co/T02firu36i https://t.co/SoOcnAg6Bb

Open original post on X

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